

SENATE No. 2038

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to increase the commuter tax deduction to reflect rising costs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/8/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>4/22/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/11/2025</i>

SENATE No. 2038

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 2038) of Mark C. Montigny for legislation to increase the commuter tax deduction to reflect rising costs. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1878 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to increase the commuter tax deduction to reflect rising costs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3(B)(a)(15) of Chapter 62 of the General Laws, as appearing in the
2 2020 Official Edition, is hereby amended by striking the paragraph and inserting in place thereof
3 the following paragraph:-

4 Amounts expended by an individual for tolls paid for through a Fast Lane account or for
5 weekly or monthly transit commuter passes for Massachusetts Bay Transit Authority transit, bus,
6 commuter rail or commuter boat, not including amounts reimbursed by an employer or
7 otherwise. In the case of a single person or a married person filing a separate return or a head of
8 household, this deduction shall apply only to the portion of the expended amount that exceeds
9 \$150, and the total amount deducted shall not exceed \$1500. In the case of a married couple
10 filing a joint return, this deduction shall apply only to the portion of the amount expended by

11 each individual that exceeds \$150, and the total amount deducted shall not exceed \$1500 for
12 each individual. Individuals purchasing weekly or monthly passes for the commuter rail may
13 deduct an additional 10 percent of their yearly costs, not to exceed an additional \$500 deducted
14 for each individual.

15 SECTION 2. The commissioner of revenue shall adopt regulations necessary for the
16 implementation of this act.